Galveston County District Court

Cause No. 2024-CV-0019

Vincent Bryant, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 13, 2024
Plaintiff's counsel:	Colleen Orr, Conley & Stephenson Law Group

PARTIES

Plaintiff Vincent Bryant is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks benefits and against which this claim is brought.

FACTS

On February 11, 2024, Plaintiff was traveling lawfully in Pasadena when another vehicle crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The impact occurred at a low rate of speed, but it was sufficient to force Plaintiff's head and neck forward and then back against the seat and headrest. Plaintiff reported the collision to the police and to Defendant, and Plaintiff has cooperated fully with the claim investigation. Defendant was notified of the claim and has not paid the benefits owed under the policy in a timely manner.

NEGLIGENCE

The at-fault driver failed to keep a proper lookout, failed to control the vehicle, and drove into the oncoming lane. Defendant, as the insurer responsible for the policy benefits, owed Plaintiff a duty to investigate the claim promptly and fairly, to evaluate it in good faith, and to pay covered amounts once liability and damages were reasonably clear. Defendant breached those duties by delaying evaluation and failing to tender payment within a reasonable time, in violation of the Texas Insurance Code and applicable Texas law on unfair claim settlement practices.

DAMAGES

As a direct result of the collision, Plaintiff sustained a neck strain that has caused pain, stiffness, headaches, and limited range of motion. Plaintiff has incurred medical expenses for examination and treatment, lost time from work, and suffered physical pain and mental anguish. Plaintiff seeks recovery of policy benefits, statutory interest, reasonable attorney's fees, and court costs, and seeks total damages in the amount of $200,000.00.